

**Memo.No.3037/SC.E/97-1, Genl.Admn. (SC.E) Dept., dt.27.04.1998 regarding
Commissionerate of Inquiries - types of cases that can be referred.**

Subject Heading : Commissionerate of Inquiries - type of cases which can be referred

* * * * *

- Ref : 1. Govt.Memo.No.1496/SC.F/86-4, G.A.(SC.F) Dept., dt.16.07.85.
2. G.O.Rt.No.732, G.A.(SC.F) Dept., dt.22.02.89.
3. G.O.Rt.No.2172, G.A.(SC.E) Dept., dt 15.05.97.
4. G.O.Rt.No.4394, G.A.(Spl.A) Dept., dt.16.08.97.
5. G.O.Rt.No.4816, G.A.(SC.E) Dept., dt.30.08.97.
6. U.O.Note No.1005/SC.E/97-3, G.A.(SC.E) Dept., dt.27.09.97
7. From the Chairman, COI., D.O.Lr.No.72/COI.CH/97-5, dt.17.11.97.

In the U.O.Note 6th cited, instructions were issued among others, to all Departments of Secretariat and other Disciplinary authorities to entrust all pending and future disciplinary cases of Gazetted Officers of the State Government, Non-Gazetted Officers of the State Government wherever considered necessary by disciplinary authorities or the Government and the Heads of Departments (other than AIS Officers) to the Commissionerate of Inquiries duly following the procedure as laid down in the provisions of APCS (CC&A) Rules, 1991 and also the disciplinary cases against AIS Officers serving in connection with the affairs of the State where major or minor penalties are proposed will also be entrusted to the Commissionerate of Inquiries in terms of relevant provisions of AIS (D&A) Rules, 1969.

2. Through reference 7th cited, the Chairman, COI had made certain suggestions to restrict the jurisdiction of the Commissionerate to cases involving major penalty and against officers appointed by Government to enable the Commissionerate to be made effective. Government have considered and accepted the above proposals and accordingly issue the following further guidelines in modification of the instructions already issued in the U.O.Note 6th cited in the matter of entrusting cases to the Commissionerate of Inquiries:-

- a) Cases of Gazetted Officers appointed by Government and cases against Gazetted officers enquired into by A.C.B. and recommended for Departmental action;
- b) All cases of Gazetted Officers in Revenue earning departments viz., Commercial Taxes, Excise, Registration and Transport Departments where the pendency of disciplinary matters over long years causing much concern to the Government;
- c) Cases of N.G.Os. where a joint inquiry both against NGOs and Gazetted Officers is necessary as well as the cases of N.G.Os involving grave charge and where the Government

consider it necessary to entrust such cases to the Commissionerate of Inquiries. It is the intention that all cases as a matter of routine should not be referred to Commissionerate of Inquiries.

3. All the Departments of Secretariat and Heads of Departments are, therefore, requested to refer only such cases referred to in para (2) above to the Commissionerate of Inquiries. They may also ensure that in all the cases referred to the Commissionerate of Inquiries, relevant records and material are produced before the Commissionerate of Inquiries promptly without any delay to avoid return of records and cases referred to the Commissionerate for want of material.